

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF PROSKURINA AND OTHERS v. RUSSIA

(Applications nos. 50811/18 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

6 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Proskurina and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 16 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of

interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, and having due regard to the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

12. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23, 10 April 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, related to the examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

IV. REMAINING COMPLAINTS

13. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings and alleged restrictions on the right to examine witnesses.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to deal separately with the remaining complaints of the applicants under Article 6 of the Convention;

3. *Holds* that these complaints disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 6 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Peeter Roosma President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	50811/18 10/10/2018	**Olga Petrovna PROSKURINA** 1996	Zhdanov Ivan Yuryevich Vilnius	Opposition manifestation Voronezh 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 25/06/2018	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	3,500
2.	10634/20 17/02/2020	**Grigoriy Andreyevich ALIKHANOV** 1990	Memorial Human Rights Centre Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for the applicant's arrest and detention for more than 9 hours on 12/06/2019; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	10700/20 17/02/2020	**Pavel Sergeyevich POTEMKIN** 1976	Memorial Human Rights Centre Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 08/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest and detention on 12/06/2019; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	4,000
4.	10757/20 22/02/2020	**Pavel Dmitriyevich LUBYANSKIY** 1989	Memorial Human Rights Centre Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 26/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 12/06/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours;	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	
5.	13757/20 29/02/2020	**Andrey Nikolayevich BYCHKOV** 1967	Chervonnyy Grigoriy Sergeyevich Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 12/06/2019 for the purpose of drawing up a record of administrative offence and detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	4,000
6.	13965/20 28/02/2020	**Aleksandr Mikhaylovich YAKOVLEV** 1999	Memorial Human Rights Centre Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of any legal grounds for the applicant's arrest and	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								escorting to the police station on 12/06/2019; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	
7.	14194/20 02/03/2020	**Pavel Ilyich KRASOVITSKIY** 1994 **Artur Vladimirovich OGANESOV** 1998	Eysmont Mariya Olegovna Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1	fine of RUB 10,000 to each of the applicants	Moscow City Court 22/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Unlawful (unjustified) arrest on 12/06/2019 (both applicants) and detention in excess of 3 hours (see Frumkin, cited above, §§ 147-52); Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings against both applicants	4,000
8.	14713/20 10/03/2020	**Leonid Aronovich KREMENETSKIY** 1957	Goncharova Vera Velimirovna Moscow	Manifestation in support of Ivan Golunov	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded	4,000

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				Moscow 12/06/2019				detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings;	
9.	14900/20 05/03/2020	**Aleksandr Aleksandrovich NEZNAKHIN** 1975		Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 06/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 12/06/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours (raised on appeal);	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	
10.	14932/20 06/03/2020	**Aleksandr Viktorovich SHMYROV** 1986	Kostanova Anastasiya Yuryevna Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 06/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful (unjustified) arrest on 12/06/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative-offence proceedings	4,000
11.	15380/20 12/03/2020	**Yevgeniy Voldemarovich BERG** 1990	Vasilyev Nikolay Vladimirovich Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/10/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in administrative-offence proceedings	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
12.	15388/20 12/03/2020	**Mikhail Borisovich KAZINIK** 1979	Vasilyev Nikolay Vladimirovich Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 14/10/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in administrative-offence proceedings	3,500
13.	18239/20 19/03/2020	**Ivan Kirillovich PETROVSKIY** 1998	Memorial Human Rights Centre Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	18240/20 19/03/2020	**Anton Aleksandrovich MOCHALIN** 1978	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma	Article 20.2 § 5 of CAO	30 hours of compulsory labour	Moscow City Court 16/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention	4,000

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				Moscow 27/07/2019				without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in administrative-offence proceedings	
15.	18241/20 19/03/2020	**Sergey Valeryevich KAPRANOV** 1992	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 18,000	Moscow City Court 14/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting	4,000

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								party in administrative-offence proceedings	
16.	19622/20 17/03/2020	**Gleb Dmitriyevich VAZHDAYEV** 1995	Vasilyev Nikolay Vladimirovich Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 18/09/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in administrative-offence proceedings	3,500
17.	20023/20 23/03/2020	**Yuliya Valeryevna PRIKHODKO** 1974	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Tverskaya str., Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 24/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful (unjustified) arrest on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in administrative-offence proceedings	4,000
18.	20335/20 27/03/2020	**Yevgeniy Igorevich NYNNIK** 1998	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation in support of Ivan Golunov	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 28/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention	4,000

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				Rozhdestvenskiy boulevard, Moscow 12/06/2019				without a judicial order and any other legal basis - unlawful (unjustified) arrest on 12/06/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in administrative-offence proceedings	
19.	25386/20 12/05/2020	**Arseniy Konstantinovich MARKIN** 2000		Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful detention on 03/08/2019, detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in administrative-offence proceedings	4,000

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20.	44159/20 17/09/2020	**Ilya Igorevich MOZYRSKIY** 1989	Eysmont Mariya Olegovna Moscow	Manifestation for fair elections in Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 18/03/2020	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.